



BTS Mentorship Program Agreement

Effective Date: Upon execution by Customer

This BTS Mentorship Program Agreement ("Agreement") is entered into between BTS (Build. Test. Scale.) ("Company," "we," "us," or "our") and the individual identified during enrollment ("Customer," "you," or "your") for the provision of online affiliate marketing training and mentorship services ("Services"). By signing up for the Services, you acknowledge that you have read, understood, and agree to be bound by the terms and conditions of this Agreement.

1. Services & Programs

The Company shall provide the Customer with access to the BTS Mentorship Program ("Program") for the purpose of teaching the Customer affiliate marketing strategies, including the Build. Test. Scale. methodology. The Program will be delivered through a learning management system or similar online platform ("Platform"), and may include video tutorials, interactive exercises, live coaching sessions, and other materials.

The Company offers different membership terms to access the Program, including 3-Month, 6-Month, 12-Month, and Lifetime Terms ("Term"). The Customer shall select the Term and the corresponding fee, as specified in the invoice provided by the Company. Live sessions, coaching, and support may be conducted via Zoom or other video conferencing platforms. The Customer is responsible for maintaining a reliable internet connection and a device that meets the Company's technical requirements.

The Company will make every effort to deliver Program content as scheduled but does not guarantee the frequency of classes or the availability of any specific instructor, coach, or support staff. The Company reserves the right to modify the

Program schedule or content due to unforeseen circumstances, and shall not be liable for any delays.

2. 90-Day Action-Based Refund Guarantee

The Company offers a 90-Day Action-Based Refund Guarantee ("Guarantee"). The minimum revenue threshold that must be missed in order to trigger the Guarantee depends on the Customer's mentorship tier:

☐ **Three-Month Mentorship:** \$5,000 in revenue within 90 days of being granted access to the Program. *Initial:* _____

☐ **Six-Month, One-Year, and Lifetime Mentorships:** \$10,000 in revenue within the first 90 days of being granted access to the Program. *Initial:* _____

If the Customer does not generate at least the applicable revenue threshold within their 90-day window, the Customer is eligible for a full refund of the purchase price **AND** continued access to all coaches and resources until that threshold is reached, **provided that** the Customer has met **all four** of the following criteria within the 90-day period:

1. ☐ Active and Engaged Participation in At Least 10 Live Zoom Calls.

Attendance alone is not sufficient. The Customer must actively ask questions, implement coaching suggestions, maintain clear audio and video, and remain visible on camera to qualify. *Initial:* _____

2. ☐ Effective Utilization of the BTS Concierge. The Customer must engage the BTS Concierge in developing marketing materials and provide demonstrable correspondence (emails or messages) showing collaborative use of the service. *Initial:* _____

3. ☐ Diligent Sharing and Daily Updating of a Profit & Loss (P&L) Spreadsheet. The Customer must update the P&L Spreadsheet daily, notify the support team at each ad-spend milestone (support@buildtestscale.com), implement coach-recommended changes, and obtain written email verification from the coaching team that those changes have been made before advancing to the next phase.

Initial: _____

- 4. ☐ Achieving the Minimum Ad-Spend Threshold for the Customer's Mentorship Tier on Specified Traffic Sources.** The Customer must spend the following minimum amount on advertisements within the 90-day period, using only the traffic sources taught within the Program:

☐ **Three-Month Mentorship:** \$5,000 USD in ad spend.

Initial: _____

☐ **Six-Month, One-Year, and Lifetime Mentorships:** \$10,000 USD in ad spend within the first 90 days. *Initial:* _____

The Customer must alert the support team at each milestone, receive coaching-team approval before proceeding past each milestone, and incorporate any recommended improvements before continuing.

Initial: _____

The 90-day period begins on the date the Customer is granted access to the Program, **not** the date the Customer first accesses the Program. No refunds shall be issued after 90 days from the start of the Program. By acknowledging this Action-Based Refund, the Customer understands that the Company does not guarantee success and that any refund is contingent upon the Customer's actual participation as described above.

Initial: _____

3. Payment

The Customer shall pay the Company the agreed-upon fee for the Services. The fee may be paid in full upfront or in installments, as specified in the invoice provided by the Company. Failure to pay any installment may result in suspension or termination of access to the Program. The Company reserves the right to change Program rates at any time, but such changes shall not apply to the Customer's existing Program.

4. Program Extension, Downgrades, and Completion

If the Customer wishes to extend the selected Program, the Customer shall notify the Company in writing and pay the corresponding extension fee, subject to the terms of this Agreement.

Once a Customer has been granted access to the Program, there is **no option to downgrade** the Term to a shorter Term.

The Company does not guarantee any specific results or outcomes from the Services, and the Customer acknowledges that individual results may vary based on personal effort, skill, financial resources, market conditions, and external factors.

5. Intellectual Property

The Company retains all ownership and intellectual property rights in the Program and all materials provided to the Customer as part of the Services. The Customer may not reproduce, distribute, resell, or create derivative works based on the Program or any of the Company's materials without the prior written consent of the Company.

6. Confidentiality

The Customer agrees to keep confidential all materials and information provided by the Company as part of the Services. The Customer shall not disclose or share any such materials or information with any third party without the prior written consent of the Company.

7. Disclaimer of Warranty

The Company makes no warranty, express or implied, regarding the accuracy, reliability, or completeness of the Program or any other materials provided to the Customer. The Company shall not be liable for any errors, omissions, or damages arising from or in connection with the Program or any other materials.

8. No Profit Guarantee

The Company does not guarantee that the Customer will make a profit or achieve any specific financial outcome as a result of the Services. The Company provides education and training on online affiliate marketing, but the success of the Customer's business is dependent on many factors, including market conditions, competition, and the Customer's own efforts and abilities. By acknowledging this clause, the Customer understands that their success is dependent on many factors and that the Company does not guarantee any specific financial outcome.

9. Limitation of Liability

The Company shall not be liable for any indirect, incidental, consequential, or punitive damages arising from or in connection with the Program or any other materials provided to the Customer. The maximum liability of the Company under this Agreement shall be limited to the amount paid by the Customer for the Services.

10. Indemnification

The Customer agrees to indemnify and hold harmless the Company, its affiliates, and their respective officers, directors, employees, and agents from any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or in connection with the Customer's use of the Program or any other materials provided by the Company.

11. Marketing Material Disclaimer

The Customer acknowledges that any marketing material related to the Program is for informational and educational purposes only and does not create any guarantees, warranties, or representations about the Services. Employing the techniques, ideas, strategies, products, or services described by BTS does not guarantee similar results. Each individual's success and results may vary significantly based on personal skills, financial resources, marketing knowledge, and time investment. Historical performances or experiences shared by the Company are individual examples and not indicative of future results. The

Company does not offer any "get rich quick" promise, and shall not be liable for any discrepancies between marketing material and the actual Services provided.

12. Non-Transferability

The Customer acknowledges that enrollment in the Program is personal and non-transferable. The Customer shall not assign or transfer any rights or obligations under this Agreement to any third party without the prior written consent of the Company.

13. Amendments to the Program

The Customer understands that, due to the dynamic nature of online affiliate marketing, the Company reserves the right to amend, modify, or change the substance of the Program — including course content, materials, instructors, and schedule — at any time and without notice. The Customer acknowledges that the Services are subject to change and that the Company shall not be liable for any such changes. The Company shall use reasonable efforts to provide notice of material changes through its website or other communication channels.

14. Amendments to This Agreement; Modifications and Waivers

The Company reserves the right to amend this Agreement at any time by posting the amended terms on its website or through the Platform. The Customer's continued use of the Program after such posting constitutes acceptance of the amended terms.

No modification or waiver of any provision of this Agreement shall be effective unless in writing and signed by both parties. The failure of either party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or the right to enforce it at a later time.

15. Termination

Either party may terminate this Agreement at any time upon written notice to the other party. Upon termination, the Customer shall immediately cease using

the Program and all materials provided by the Company. Termination does not entitle the Customer to a refund, except as expressly provided in this Agreement.

16. Breach of Agreement

In the event that the Company brings any legal action or proceeding against the Customer arising out of or relating to this Agreement, the Company shall be entitled to recover its reasonable attorneys' fees and costs incurred in connection with such action or proceeding, in addition to any other relief to which it may be entitled.

17. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without giving effect to any choice or conflict of law provision or rule. Any legal action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the federal or state courts located in the County of Dallas, State of Texas, and each party hereby submits to the exclusive jurisdiction and venue of such courts.

18. Waiver of Class Action

The Customer and the Company waive any right to bring any claims against each other as a plaintiff or class member in any purported class or representative action. The Customer and the Company agree that any dispute shall be resolved on an individual basis and that neither party shall be entitled to join or consolidate claims in arbitration or court with claims brought by or against any other party.

19. Survival

The provisions of this Agreement that by their nature are intended to survive termination — including but not limited to the provisions on intellectual property, confidentiality, limitation of liability, and governing law — shall survive termination of this Agreement.

20. Entire Agreement

This Agreement constitutes the entire agreement between the Company and the Customer with respect to the subject matter hereof and supersedes all prior or contemporaneous communications and proposals, whether oral or written, between the parties.

21. Contact

For questions regarding this Agreement, contact us at

support@buildtestscale.com.

By proceeding, you acknowledge that you have read, understand, and agree to the terms of this BTS Mentorship Program Agreement.

22. Signatures

The parties have executed this Agreement as of the dates set forth below.

CUSTOMER

PRINTED NAME

SIGNATURE

DATE

COMPANY — BTS (BUILD. TEST. SCALE.)

PRINTED NAME

TITLE

SIGNATURE

DATE

